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Case Number: 26NWCV00050 Hearing Date: August 18, 2026 Dept: P

SANDRA WHITE, ET AL. v.

GENESIS MOTOR AMERICA, LLC

CASE NO.: 26NWCV00050

HEARING: 08/18/2026 @

9:30 AM

#8

TENTATIVE ORDER

Defendant Genesis Motor America's motion to compel arbitration is GRANTED. This action is STAYED pending the outcome of arbitration.

Moving party to give notice.

Defendant Genesis Motor America, LLC (Defendant) moves to compel Plaintiffs Sandra White and Darrell White (Plaintiffs) to arbitrate their claims and to stay this action pending the outcome of the arbitration.

Background

On January 7, 2026, Plaintiffs filed this lemon law action against Defendant Hyundai Motor America and Does 1 through 10. Following a joint stipulation between the parties to substitute defendants, on June 26, 2026, Plaintiffs filed the operative first amended complaint (FAC) against

Defendant Genesis Motor America, LLC and Does 1 through 10. The FAC alleges that Plaintiffs experienced defects and nonconformities to warranty with their purchase of a 2023 Genesis GV70 (Subject Vehicle). (FAC, ¶¶ 8-10.) The FAC asserts three causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; and (3) violation of the Song-Beverly Act section 1793.2.

Legal Standard

Under both the Federal Arbitration Act (FAA) and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc., § 1281.2.) This is usually done by presenting a copy of the signed, written agreement to the court. “A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state...the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. Rules of Court, rule 3.1330.) The moving party must also establish the other party's refusal to arbitrate the controversy. (Code Civ. Proc., § 1281.2.) “Once such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges.” (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160.)

In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.) A petition to compel arbitration is a suit in equity to compel specific performance of a contract. (*Frog Creek Partners, LLC. v. Vance Brown, Inc.* (2012) 206 Cal.App.4th 515, 532.)

Under the FAA, general contract defenses, such as fraud, duress, or unconscionability, may provide grounds for invalidating an arbitration agreement if they are enforced evenhandedly and do not interfere with fundamental attributes of arbitration. (9 U.S.C.A. § 1 et seq.)

Request for Judicial Notice

Defendant requests the Court take judicial notice of the FAC and its 2023 Owner's Handbook and Warranty Information.

Defendant's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivisions (d), (h).

Discussion

Defendant moves to compel Plaintiffs to arbitrate their claims. Defendant argues Plaintiffs entered into two separate agreements containing arbitration provisions: (1) Defendant's Connected Services Agreement (CSA) as part of enrollment into Defendant's connected services and (2) the express New Vehicle Limited Warranty (NVLV) that accompanied the sale of the Subject Vehicle.

On August 10, 2026, Defendant filed a Notice of Non-Opposition indicating that Plaintiffs had not filed a timely opposition.

Validity of the Arbitration Agreement in the CSA

Defendant argues that Plaintiffs agreed to arbitrate their claims in the CSA. The arbitration provision in the CSA provides:

14. RESOLVING DISPUTES.

[...]

C. Binding Arbitration

[...]

Arbitration Agreement:

(a) Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service

Plans, the Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law. However, any dispute you or we may have relating to copyrights or other intellectual property shall not be governed by this agreement to arbitrate. For the avoidance of doubt, this means that any claims you or we may have relating to intellectual property rights against the other, including injunctive and other relief sought, may be brought in a court of competent jurisdiction. The agreement to arbitrate otherwise includes, but is not limited to:

claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising); claims that are currently the subject of purported class action litigation in which you are not a member of a certified class; claims relating to the Vehicle for which you seek product or service support via the sites; claims arising out of or relating to the Telephone Consumer Protection Act; claims relating to your data privacy or information security; and claims that may arise after the termination of this Agreement.

For purposes of this arbitration provision, references to "Hyundai," "you," and "us" shall include our respective parent entities, subsidiaries, affiliates, agents, employees, predecessors in interest, successors and assigns, websites of the foregoing, as well as all authorized or unauthorized users or beneficiaries of services, products or information provided or made available under this or prior Agreements between us relating to or arising from any aspect of your use of the Connected Services, Connected Service Systems, Service Plans, the Vehicle or access of the sites. Notwithstanding the foregoing, either party may bring an individual action in small claims court. You agree that, by entering into this Agreement, you and Hyundai are each waiving the right to a trial by jury or to participate in a class or representative action to the maximum extent permitted by law. This Agreement evidences a transaction in interstate commerce, and thus the Federal Arbitration Act governs the interpretation and enforcement of this arbitration provision. This arbitration provision shall survive termination of this

Agreement or your relationship with Hyundai for any reason.

(Rao Decl., Exh. B, ¶ 14.) The Court notes that the CSA defines the terms “we,” “us,” “our,” “Hyundai Motor America,” “Hyundai,” or “Connected Services” to apply to “Hyundai Motor America, Genesis Motor America and their affiliates.” (Rao Decl., Exh. B.)

Defendant puts forth the declaration of Vijay Rao, the Director of Connected Ops & Owner Apps/Web of Defendant since January 10, 2022 and Senior Group Manager of Digital Business & Connected Ops since 2017 to explain the process of assenting to the CSA. (Rao Decl., ¶ 1.) Mr. Rao states he works closely with “Hyundai AutoEver America (“HAEA”), which collects and stores Connected Services data on HAEA systems in the normal course of business.” (Rao Decl., ¶ 1.) Mr. Rao explains the connected services refer to an “optional Connected Services system that includes various functions and features” and that Defendant provides a copy of the CSA to each customer who enrolls in a connected services plan. (Rao Decl., ¶¶ 5-6.) Mr. Rao confirms Plaintiffs enrolled the Subject Vehicle in Genesis connected services on September 4, 2022. (Rao Decl., ¶ 7.) Mr. Rao states that to enroll in Genesis connected services, customers must agree to the CSA, and on the date Plaintiffs purchased the Subject Vehicle, Plaintiffs enrolled in the services on the Dealer Web Portal (DWP) through the Dealer-Assisted Enrollment process. (Rao Decl., ¶ 8.) In this process, the dealer and customer use an online portal on a dealer-owned device, the dealer creates an account for the customer, and the device is given to the customer to enter their personal details and review the terms and conditions. (Rao Decl., ¶ 8.) Mr. Rao states that on the date Plaintiff purchased the Subject Vehicle, “Plaintiffs would have had to check the box to acknowledge that they “read and agree[d] to the Genesis Connected Terms & Conditions” and then select the “Complete” button just below.” (Rao Decl., ¶ 11.) The phrase Terms & Conditions included a hyperlink to the then-effective CSA.” (Rao Decl., ¶ 10.)

“[A]n enforceable agreement may be found where ‘(1) the website provides reasonably conspicuous notice of the terms to which the consumer will be bound; and (2) the consumer takes some action, such as clicking a button or checking a box, that unambiguously manifests his or her assent to those terms.’” (Oberstein v. Live Nation Entertainment, Inc. (9th Cir. 2023) 60 F.4th 505, 515; see B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 951.) Here, Mr. Rao provides a screenshot reflecting the hyperlinked “Terms & Conditions” which states that checking the box

includes agreeing to the CSA. (Rao Decl., Exh. D.) Mr. Rao explains that “the box acknowledging the Terms and Conditions would not have been ‘prepopulated’ with a check mark. Plaintiffs would have had to check that box themselves to acknowledge assent to the CSA. Plaintiffs would have also separately needed to select the ‘Complete’ button to proceed with the enrollment.” (Rao Decl., ¶ 11.) The Court finds that Defendant establishes that the CSA constitutes an enforceable agreement by including reasonably conspicuous terms to which Plaintiffs assented by clicking a box.

Further, the Court finds that the CSA, while related to the technological aspects of the car, specifically covers claims arising out of the warranty. The first sentence states “Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services... the Vehicle, use of the sites, or products, services,” and within the same paragraph elaborates “[t]he agreement to arbitrate otherwise includes, but is not limited to: claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory...” (Rao Decl., Exh. B, ¶ 14, emphasis added.)

The CSA expressly states that “[t]his Agreement evidences a transaction in interstate commerce, and thus the Federal Arbitration Act governs the interpretation and enforcement of this arbitration provision.” (Rao Decl., Exh. B.) Thus, the FAA governs this agreement. (See *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963 [“The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.”].)

Since the Court finds that the CSA constitutes an enforceable arbitration agreement between the parties, the Court does not proceed to review the validity of the arbitration agreement in the NVLV.

Accordingly, Defendant’s motion to compel arbitration is GRANTED.

Motion to Stay
Proceedings

California Code of
Civil Procedure section 1281.4 states that the court shall stay the action or proceeding if the court has ordered arbitration. (Code Civ. Proc., § 1281.4.) Accordingly, the Court will STAY proceedings pending arbitration.